Harris County District Court

Cause No. 2024-CV-0007

Antonio Evans, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-23-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Subject to and without waiving the foregoing, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof as required by the Texas Rules of Ciivl Procedure.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the occurrence made the basis of this suit. Under Chapter 33 of the Texas Cviil Practice and Remedies Code, any recovery must be reduced in proportion to Plaintiff's percentage of responsibility, and Plaintiff may be barred entirely if that percentage exceeds fifty percent.

Second, the occurrence was caused in whole or in part by the acts or omissions of persons or entities other than Defendant, and Defendant requests that the trier of fact designate all responsible parties under Section 33.004 of the Texas Civil Practice and Remedies Code.

Third, Defendant invokes the doctrine of sole proximate cause and contends that the conduct of a third party, over whom Defendant had no control, was the sole proximate cause of the injureis alleged. Defendant further reserves the right to amend this answer as discovery proceeds.